

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 95-165

WASTE DISCHARGE REQUIREMENTS
FOR
CANYON FORK PROPERTIES
DONALD L. PAGE, BARBARA L. PAGE, CURTIS W. PAGE,
DOUGLAS L. PAGE, AND RICK A. PAGE
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Canyon Fork Properties, a general partnership consisting of Donald L. Page, Barbara L. Page, Curtis W. Page, Douglas L. Page, and Rick A. Page, owns and operates a wastewater treatment facility (WWTF) serving a shopping center in Prather and consisting of two aerated and two evaporation/percolation ponds. Canyon Fork Properties, Donald L. Page, Barbara L. Page, Curtis W. Page, Douglas L. Page, and Rick A. Page are hereafter jointly referred to as Discharger.
2. Waste Discharge Requirements Order No. 86-043, adopted by the Board on 28 February 1986, prescribes requirements for a discharge of 40,000 gallons per day (gpd) from the WWTF. However, a report dated 7 December 1992 submitted by the Discharger's engineer indicates that the actual WWTF disposal capacity is in the order of 11,500 gpd. The treatment capacity of the WWTF is reported to be 40,000 gpd.
3. Order No. 86-043 does not adequately address the actual WWTF disposal capacity and is not consistent with current plans and policies of the Board.
4. On 17 November 1989, the Board's Executive Officer issued Cleanup and Abatement Order No. 89-721, directing the Discharger to correct chronic violations of BOD limits and seepage problems at the WWTF. It also directed the Discharger to implement adequate ground water monitoring. The Discharger corrected the seepage problems in 1991, has been meeting its BOD limits since 1992, and installed one ground water monitoring well in 1990 and three more in 1994.
5. On 24 March 1995, a staff inspector observed one of the disposal ponds was overflowing along a portion of its southern bank at an estimated 10 to 15 gallons per minute. The overflow made its way downhill along a dirt driveway at the side of the pond and entered a culvert adjacent to Highway 168 and a tributary to Little Dry Creek. Average monthly flows for the site ranged from 6,750 to about 14,600 gpd during 1994. Flows since October 1994 to March 1995 averaged 8,600 gpd. Based on the overflow, average flows, and precipitation data for the site, staff estimates that the disposal capacity of the site may be less but not greater than 8,600 gpd.

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6. The Discharger reduced the daily flows discharged into the WWTF by about 2,800 gpd in May 1995 by eliminating discharges of noncontact cooling water into the WWTF collection system (about 2,100 gpd), by installing low flow toilets and restricting use of rest room services at the shopping center, and by raising the grade of manhole covers to preclude inflow of storm water runoff.
7. The WWTF is in Section 25, T10S, R22E, MDB&M, with surface water drainage to Little Dry Creek, as shown in Attachment A, which is attached hereto and part of this Order by reference. The site lies within the Little Dry Creek hydrologic area (No. 540.70), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
8. The Fresno County Local Agency Formation Commission has conditionally approved formation of County Service Area No. 46 (CSA), whose purpose is to assume ownership and operation of wastewater collection, treatment, and disposal in the Prather area. The CSA will not be activated unless the system regulated by this Order is properly constructed and maintained. Unless extended, the authority for the CSA will lapse in October 1995.
9. The Board adopted a Water Quality Control Plan for the Sacramento River and San Joaquin River Basins, Third Edition, hereafter Basin Plan, which contains water quality objectives for waters of the Basin. These requirements implement the Basin Plan.
10. Little Dry Creek is tributary to the San Joaquin River, a water of the United States. The beneficial uses of this reach of the San Joaquin River are municipal, industrial, and agricultural supply; recreation; esthetic enjoyment; hydropower generation; and preservation and enhancement of fish, wildlife, and other aquatic resources.
11. The beneficial uses of underlying ground water are domestic, industrial, and agricultural supply.
12. The Discharger has one upgradient ground water monitoring well (GW-1) and three downgradient ground water monitoring wells (GW-2, GW-3, and GW-4) for the WWTF. Monitoring results indicate ground water at the site is 13 to 30 feet below ground surface. Preliminary ground water sampling revealed the presence of total coliform bacteria in one of the downgradient wells.
13. The disposal ponds are in an outcrop of rock and underlain by decomposed granite. On-site discharges are undisinfected. There is very little soil structure beneath pond bottoms to remove bacteria concentrations that threaten ground water quality. The Discharger proposes to install disinfection units and disinfect the discharge.

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14. The Discharger reports there is no irrigated land near the WWTF and the low volume of wastewater discharged makes reclamation economically infeasible.
15. The action to revise waste discharge requirements for this minor modification of an existing permitted facility is exempt from the provisions of the California Environmental Quality Act (CEQA) in accordance with Title 14, California Code of Regulations (CCR), Section 15301.
16. The permitted discharge is an ongoing discharge consistent with the antidegradation provisions of State Water Resources Control Board Resolution 68-16. This Order provides for a reduction in the volume of pollutants discharged. The project's discharge to the disposal area will not cause significant impacts on ground water and surface waters, or depletion of limited ground water resources.
17. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
18. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 86-043 is rescinded and Canyon Fork Properties, Donald L. Page, Barbara L. Page, Curtis W. Page, Douglas L. Page, and Rick A. Page, their agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) and 2522(a) of Title 23, California Code of Regulations, Section 2510, et seq., (hereafter Chapter 15) is prohibited.

B. Discharge Specifications:

1. The monthly average discharge shall not exceed 8,600 gpd or a lesser flow if necessary to assure compliance with other terms of this Order.
2. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas.
3. As a means of discerning compliance with Discharge Specification No. B.2, the dissolved oxygen content in the upper zone (1 foot) of wastewater in ponds shall not be less than 1.0 mg/l.
4. The effluent from the aerated ponds shall not exceed the following limits:

<u>Constituent</u>	<u>Units</u>	<u>Monthly Average</u>	<u>Daily Maximum</u>
BOD ₅ ¹	mg/l	30	60
Total Suspended Solids	mg/l	30	60
Total Coliform Organisms	MPN/100 ml	23	240
Settleable Solids	ml/l	0.1	0.2

¹ 5-day, 20° Celsius biochemical oxygen demand.

5. Ponds shall not have a pH less than 6.5 or greater than 9.5
6. Ponds shall be managed to prevent breeding of mosquitos. In particular:
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
7. Public contact with wastewater in the treatment and disposal areas shall be precluded through such means as fences, signs, and other acceptable alternatives.
8. Ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation and ancillary inflow and infiltration throughout

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the year. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than two feet (measured vertically).

9. On or about 1 October of each year, available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specification No. B.8.

C. Sludge Disposal Specifications:

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Chapter 15 and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice shall be reported to the Executive Officer **at least 90 days in advance** of the change.

D. Ground Water Limitations:

The discharge, in combination with other sources, shall not cause underlying ground water to:

1. Contain waste constituents in concentrations statistically greater than receiving water limits specified below.
2. Contain chemicals, heavy metals, or trace elements in concentrations that adversely affect beneficial uses or exceed maximum contaminant levels specified in the California Code of Regulations, Title 22, Division 4, Chapter 15.
3. Equal or exceed a most probable number of total coliform organisms of 2.2/100 ml over any seven-day period.
4. Contain taste or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses.

E. Provisions:

1. The Discharger shall comply with Monitoring and Reporting Program No. 95-165, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.

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2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
3. Compliance with all the terms and conditions of this Order shall be achieved according to the following time schedule:
 - a. By **15 July 1995**, the Discharger shall submit a technical report consisting of plans and specifications for compliance with the disinfection requirements of Discharge Specification No. B.4. The report shall contain a time schedule for implementation by **1 October 1995**;
 - b. By **15 July 1995**, a copy of the operation and maintenance (O&M) manual for the WWTF.
 - c. By **15 July 1995**, a written report in the form of a water balance pursuant to Discharge Specification Nos. B.8 and B.9. The water balance must include dimensions of treatment basins and disposal ponds (e.g, surface and bottom areas, volume, and depth) and consider total annual precipitation data with a 100-year return frequency, pond evaporation and percolation rates, and storage requirements for current and design flows.

All technical reports must be prepared under the direction of a California Registered Civil Engineer with experience in the design and operation of domestic WWTFs. All reports are subject to the review and approval of the Executive Officer.

4. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

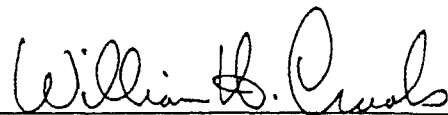
To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the State of incorporation if a corporation, the name and address and telephone number of the persons responsible for contact with the Board, and a statement. The statement shall comply with the signatory paragraph of Standard Provision B.3 and state that the new owner or operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the California Water Code. Transfer shall be approved or disapproved by the Executive Officer.

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5. The Discharger shall use the best practicable cost-effective control technique currently available to comply with salinity limits specified in this order.
6. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
7. The Discharger shall submit to the Board on or before each report due date the specified document or, if an action is specified, a written report detailing evidence of compliance with the date and task. If noncompliance is being reported, the reasons for such noncompliance shall be stated, plus an estimate of the date when the Discharger will be in compliance. The Discharger shall notify the Board by letter when it returns to compliance with the time schedule.
8. A copy of this Order shall be kept at the WWTF for reference by operating personnel. Key operating personnel shall be familiar with its contents.
9. If reclaimed water is used for construction purposes, it shall comply with the most current edition of "Guidelines for Use of Reclaimed Water for Construction Purposes". Other uses of reclaimed water not specifically authorized herein shall be subject to the approval of the Executive Officer and shall comply with 22 CCR, Division 4.
10. The Board will review this Order periodically and will revise requirements when necessary.

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 23 June 1995.


WILLIAM H. CROOKS, Executive Officer

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 95-165
FOR
CANYON FORK PROPERTIES
DONALD L. PAGE, BARBARA L. PAGE, CURTIS W. PAGE,
DOUGLAS L. PAGE, AND RICK A. PAGE
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

EFFLUENT MONITORING

Except for flow, which may be measured at or prior to the treatment units, effluent samples shall be collected prior to discharge to the disposal ponds. Effluent samples should be representative of the volume and nature of the discharge. Time of collection of a grab sample shall be recorded. Effluent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Frequency</u>
Total Daily Flow	gpd	Continuous	Daily
Settleable Solids	ml/l	Grab	Weekly
Specific Conductivity @ 25°C	µmhos/cm	Grab	Weekly
BOD ₅ ²	mg/l	Grab	2/month
Total Suspended Solids	mg/l	Grab	2/month
Total Coliform Organisms	MPN/100 ml	Grab	Monthly

¹ If results of monitoring a pollutant appear to violate effluent limitations, but monitoring frequency is not sufficient to validate violation (e.g., the monthly average for BOD), or indicate a violation and potential upset of the treatment process (e.g., less than minimum D.O.), the frequency of sampling shall be increased to confirm the magnitude and duration of violation, if any, and aid in identification and resolution of the problem.

² Five-day, 20° Celsius biochemical oxygen demand.

POND MONITORING

The freeboard shall be monitored on the disposal ponds to the nearest tenth foot. Pond water monitoring shall include the following :

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<u>Constituent</u>	<u>Unit</u>	<u>Measurement</u>	<u>Frequency</u>
Freeboard	feet	Observation	Weekly
pH	pH units	Grab	Daily
Dissolved Oxygen ¹	mg/l	Grab	Daily

¹ Samples shall be collected at a depth of one foot from each pond, opposite the inlet, and analyzed for dissolved oxygen. Samples shall be collected between 0800 and 0900 hours.

By **15 August 1995**, permanent markers (e.g., staff gages) shall be placed in the pond with calibrations indicating the water level at design capacity and available operational freeboard. In addition, the Discharger shall inspect the conditions of the ponds once per week and write visual observation in a bound log book. Notations shall include observations of whether weeds are developing in the water or along the bank, and their locations; whether dead algae, vegetation, scum, or debris are accumulating on the pond surface and their location; whether burrowing animals or insects are present; and the color of the pond (e.g., dark sparking green, dull green, yellow, grey, tan, brown, etc.) A copy of the entries made in the log during each month shall be submitted along with the monitoring report the following month. Where the O&M manual indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken.

GROUND WATER MONITORING

The Discharger shall sample the ground water monitoring wells identified in Finding No. 10 of this Order, monthly for one year, and analyze them for the parameters specified below. After one year of sampling the wells, data from these analyses shall be reported to the Board **by the 20th day of the following month** for use in establishing water quality protection standards. If subsequent sampling of background monitoring wells indicates significant water quality changes due to either seasonal fluctuations or other reasons unrelated to waste disposal activities, the Discharger may request modification of the water quality protection standards.

The downgradient wells near the facility property boundaries shall constitute "points of compliance (POCs)". In conjunction with background monitoring, monitoring of POCs will enable one to determine compliance with water quality protection standards. The ground water surface elevation (in feet and hundredths, M.S.L.) in all wells shall be measured on a quarterly basis and used to determine the gradient and direction of ground water flow. Water samples shall be collected from the wells and analyzed as follows:

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<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Specific Conductivity @ 25°C	µmhos/cm	Grab	Quarterly
Nitrate Nitrogen	mg/l	Grab	Quarterly
Total Coliform Bacteria	MPN/100 ml	Grab	Quarterly
Depth (bgs) and Elevation (MSL) of Ground Water	Feet & hundredths	Measurement	Quarterly

Following each sampling event, the discharger shall determine whether there is a statistically significant increase over water quality protection standards for each parameter and constituent analyzed. If the Discharger or the Board finds there is a statistically significant increase in indicator parameters or waste constituents over the water quality protection standards at the POC's, the Discharger shall notify the Board immediately and increase the monitoring frequency to monthly, pending additional directions from Board staff.

REPORTING

Monthly monitoring containing results of all sampling for the month shall be submitted to the Board by the **20th day of the following month**.

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner that illustrates clearly whether the Discharger complies with waste discharge requirements, including calculation of all averages, etc.

If the Discharger monitors any pollutant at the locations designated herein more frequently that is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.

By **31 January of each year**, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names, titles, certificate grade (if any) and general responsibilities of persons operating and maintaining the wastewater treatment plant.

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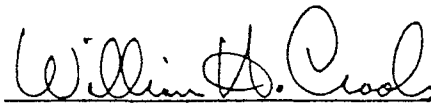
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- b. The names and telephone numbers of persons to contact regarding the plant for emergency and routine situations.
- c. A certified statement of when the flow meter and other monitoring instruments and devices were last calibrated, including identification of who did the calibration (Standard Provision C.4).
- d. A statement whether the current operation and maintenance manual, and contingency plan, reflect the wastewater treatment plant as currently constructed and operated, and the dates when these documents were last reviewed for adequacy.
- e. The total quantity of sludge disposed of during the previous year and ultimate disposal site(s).

All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following effective date of this Order.

Ordered by:



WILLIAM H. CROOKS, Executive Officer

23 June 1995

(Date)

JLA:jla/rac:6/23/95 AMENDED

INFORMATION SHEET

CANYON FORK PROPERTIES.
DONALD L. PAGE, BARBARA L. PAGE.
CURTIS W. PAGE, DOUGLAS L. PAGE.
AND RICK A. PAGE
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

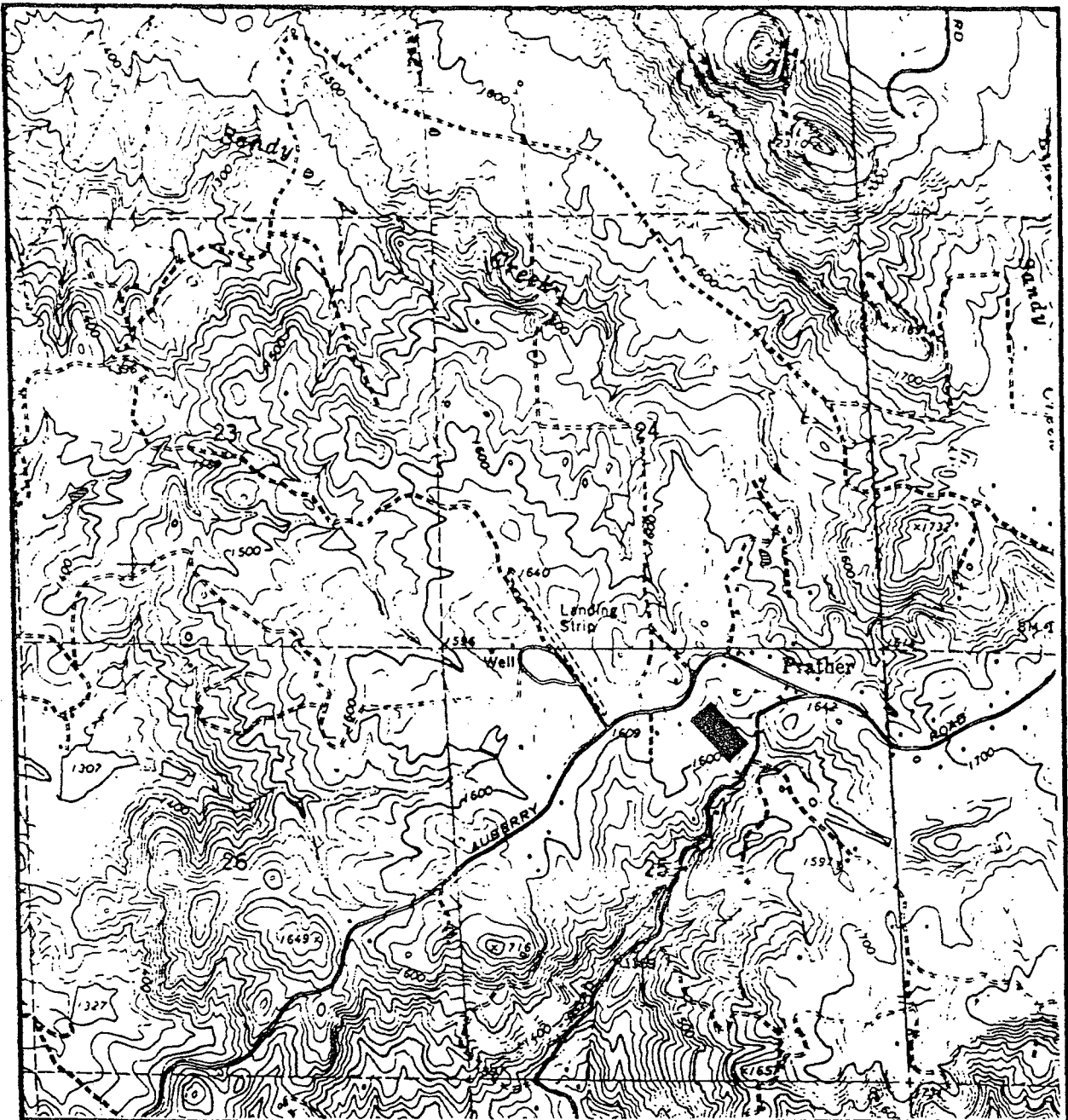
Canyon Fork Properties is a general partnership that owns and operates a wastewater treatment facility (WWTF) serving a shopping center in Prather. The discharge from the site is currently governed by Waste Discharge Requirements Order No. 86-043 and Cleanup and Abatement Order No. 89-721.

Order No. 86-043 prescribes requirements for a discharge of 40,000 gallons per day (gpd) from the WWTF, which consists of two aerated and two evaporation/percolation ponds. However, based on a recent overflow, staff estimates the actual WWTF disposal capacity to be in the order of 8,600 gpd or less. Accordingly, proposed tentative waste discharge requirements set the flow limit at 8,600 gpd, subject to compliance with freeboard limits. Monthly average flows at the WWTF ranged from 12,574 to 6,438 gpd during the last quarter in 1994. Order No. 89-721 was issued by the Board's Executive Officer in November 1989 against the Discharger for chronic violations of BOD limits, seepage problems, and inadequate ground water monitoring at the WWTF. The Discharger corrected the seepage problems in 1991, has been meeting its BOD limits since 1992, and installed one ground water monitoring well in 1990 and three more in 1994.

The disposal ponds are in an outcrop of rock and underlain by decomposed granite. On-site discharges are undisinfected. There is very little soil structure beneath pond bottoms to remove bacteria concentrations that threaten ground water quality. The Discharger has one upgradient ground water monitoring well (GW-1) and three downgradient ground water monitoring wells (GW-2, GW-3, and GW-4) for the WWTF. Monitoring results indicate ground water at the site is 13 to 30 feet below ground surface. Preliminary ground water sampling revealed the presence of total coliform bacteria in one of the downgradient wells. The Discharger proposes to install disinfection units and disinfect the discharge. Because of the threat, the proposed Order establishes secondary effluent disinfection limits.

The Discharger is exploring the possibility of discharging wastes off-site, including a discharge to a 40-acre site just north of the shopping center and discharging into the Foothill Middle School WWTF. The discharge from the school's WWTF is governed by WDRs Order No. 94-107. The Fresno County Local Agency Formation Commission conditionally approved formation of County Service Area No. 46 (CSA), whose purpose is to assume ownership and operation of the wastewater collection, treatment, and disposal facilities for the Prather area. The CSA will not be activated unless the Discharger is in compliance with Board requirements. The deadline for CSA formation expires in October 1995. The Discharger has not complied with CEQA for an off-site discharge.

The action to revise waste discharge requirements for this minor modification of an existing permitted facility is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with Title 14, California Code of Regulations (CCR), Section 15301.



Treatment and
Disposal
Ponds

Scale: 1"=2000'

Attachment A

Vicinity Map

Canyon Fork Properties, et.al.
Canyon Fork Properties WWTF
Fresno County

Section 25, T10S, R22E, MDB&M
Woodlake, 7 1/2' USGS Quad, 1969